

City Contract # _____

MPO Contract # 187446

PROFESSIONAL SERVICES AGREEMENT
for the
East Dell Range Boulevard / U.S. 30 Corridor Study - 2018

PREAMBLE

THIS AGREEMENT is made and entered into this ____ day of _____, 2018, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO,” and Kimley Horn, hereinafter referred to as “Consultant.” The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO’s Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. CONSULTANT RESPONSIBILITY

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not

meeting such a standard.

4. GIS MAPS AND DIGITAL DATA

If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.

6. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

8. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers' compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
11. COMPENSATION
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total amount of ninety-seven thousand, one hundred and forty-five Dollars (\$97,145.00), in accordance with the fee schedule given in Exhibit C, which is attached to this Agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

12. MPO REPRESENTATIVE

Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Works, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or

- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this Agreement in whole or in part at any time, for the MPO's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

21. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY

The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and

defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et. seq.*

23. ENVIRONMENTAL POLICY ACTS

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

24. HUMAN TRAFFICKING

As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect;
or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

25. KICKBACKS

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

26. LIMITATIONS ON LOBBYING ACTIVITIES

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its sub-consultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

27. MONITORING ACTIVITIES

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

28. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, the Age Discrimination Act of 1975, and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

29. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.

30. PUBLICITY

Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify Cheyenne MPO, WYDOT and/or the Federal Highway Administration as the sponsoring agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

31. SUSPENSION AND DEBARMENT

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and 44 C.F.R. Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

32. NO GOVERNMENT OBLIGATION TO THIRD PARTIES

No Obligation by the Federal Government.

- a. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit

Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

33. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, “Program Fraud Civil Remedies,” 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

34. FEDERAL CHANGES 49 C.F.R. Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures and directives, including without limitation those listed directly or by reference in the Agreement (Form FTA MA (18) dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant’s failure to so comply shall constitute a material breach of this Agreement.

35. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS
FTA Circular 4220.1F

Applicability: The incorporation of FTA terms applies to all contracts.

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA

mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

36. LOBBYING 31 U.S.C. § 1352 – 49 C.F.R. Part 19 - 49 C.F.R. Part 20
Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352, as amended by the Lobbying Disclosure Act of 1995, 2 U.S.C. § 1601, *et seq.* Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 C.F.R. Part 20, “New Restrictions on Lobbying”. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay a person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. § 1352. Such disclosures are forwarded from tier to tier up to the recipient.
37. ADA ACCESSIBILITY 42 U.S.C. § 12101, *et seq.*
Applicability: Facilities construction or renovation contracts.
Facilities to be used in public transportation service must comply with 42 U.S.C. § 12101, *et seq.*, and DOT regulations, “Transportation Services for Individuals with Disabilities (ADA),” 49 C.F.R. Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 C.F.R. Part 1192 and 49 C.F.R. Part 38. Notably, DOT incorporated reference the ATBCB’s “Americans with Disabilities Act Accessibility Guidelines” (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 C.F.R. Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 C.F.R. Part 37.
38. PRIVACY ACT 5 U.S.C. § 552
Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:
- a. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure

to comply with the terms of the privacy Act may result in termination of the underlying contract.

- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

39. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION

a. Special Provisions

- (i) Conflict of Interest. The subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- (ii) Mandatory Disclosures. The subrecipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

b. General Provisions

- (i) Amendments. Either party may request changes in this Agreement. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- (ii) Assumption of Risk. The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the City of any state or federal determination of noncompliance.
- (iii) Availability of Funds. Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the City, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the City at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to

terminate this Agreement in order to acquire similar services from another party.

- (iv) Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- (v) Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement, and the Wyoming State Auditor shall not draw warrants for payment on this Agreement until this Agreement has been reduced to writing, approved as to form by the Office of the Attorney General, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. §9-2-1016(b)(iv).
- (vi) Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- (vii) Assignment/Agreement Not Used as Collateral. Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

40. ENTIRETY OF AGREEMENT

This Agreement consisting of 13 pages, and Exhibits A, B, and C consisting of 7, 1, and 1 pages respectively, and submitted proposal with negotiated changes, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

**[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK:
SIGNATURE PAGES FOLLOWS]**

Cheyenne Metropolitan Planning Organization

2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Marian J. Orr, Mayor
MPO Policy Committee Chairman

Date: _____

(SEAL)

Attest:

Carol Intlekofer, City Clerk

CITY OF CHEYENNE

By: _____
Marian J. Orr, Mayor

Date: _____

Consultant

Kimley Horn
4582 South Ulster Street, Suite 1500
Denver, CO 80237

By: _____

Print Name: _____

Address: _____

Date: _____

EXHIBIT A

*Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and Kimley-Horn
for Planning and Engineering Services in Support of the East Dell Range and US 30 Corridor Study*

Exhibit A
Scope of Work
for
EAST DELL RANGE BOULEVARD/US 30 CORRIDOR STUDY

Scope of Work

TASK 1 – PROJECT MANAGEMENT, COORDINATION, AND COMMUNICATION

The Kimley-Horn team will coordinate with the MPO, participate in team meetings and conference calls, and provide timely invoicing and reporting of the project’s progress. This effort will include an internal team kick-off meeting to identify key stakeholders, and to discuss expectations, coordination efforts, processes, and outcomes.

Deliverable(s):

- Monthly coordination meeting and documented action items
- Monthly progress reporting and invoicing

TASK 2 – PUBLIC KICKOFF AND GOAL SETTING

Based feedback received through the community engagement activities, Kimley-Horn will draft a set of community-supported project goals and success measures for review and input from staff, the Project Steering Committee (PSC), and the community. These project goals and success measures will be used to guide the project’s mobility performance targets and objectives.

Task 2.1 – Project Public Kick-off

The Kimley-Horn team will attend and facilitate the project kick-off that will consist of the following activities:

- **Project Steering Committee (PSC) Meeting #1** – The Kimley-Horn team and MPO will hold a project kick-off meeting with the PSC to understand the Committee’s goals and objectives for the project. Participants at this meeting will:
 - Discuss expectations regarding project process, issues, concerns, schedule, scope refinement, outcomes, and products
 - Discuss conclusions from previous studies and coordinate efforts with current initiatives
 - Review existing materials and data requirements with the Project Team
 - Discuss schedule, roles, and responsibilities
- **Study Area Tour** – Following the PSC meeting #1, the Kimley-Horn team will tour the plan area with key MPO, City staff, and project partners to discuss specific issues and opportunities related to the East Dell Range and US 30 corridors. The Kimley-Horn team will document the character of the study area through digital photographs of key locations and the surrounding neighborhoods.

Task 2.2 – Focus Groups and Stakeholder Interviews

Kimley-Horn will conduct up to eight (8) one-on-one interviews with elected officials, partner public agencies (Laramie County School District, Cheyenne Transit Program staff, and WYDOT), community leaders, property owners, development community representatives, neighborhood organizations, and other key stakeholders. Kimley-Horn will conduct individual interviews to better understand the context of the area and specific expectations. The interviews will be brief (approximately one hour), informal, and designed to elicit issues and concerns from the stakeholders, as well as provide an opportunity to inform stakeholders about the project. These interviews will allow Kimley-Horn to discuss current

initiatives and available information; understand project expectations; and identify key issues that need to be addressed.

Task 2.3 – Community Workshop #1

Kimley-Horn will develop advertising materials and facilitate one, 2-hr evening public workshop which will introduce the project to the broader corridor community for MPO production and distribution. The intent of the workshop is to engage the public early in the process, while giving the Kimley-Horn team and MPO the ability to understand public issues, concerns, and objectives while learning the community's key expectations for the corridor.

Task 2.4 – Draft Project Goals and Success Measures

Based on feedback received through the community engagement activities, Kimley-Horn will draft a series of community values, which will influence the study's transportation performance targets, goals, and objectives. A draft set of project goals and anticipated measures of success will be developed for community review and confirmation.

Deliverable(s):

- Information for meeting announcements and advertising material for City publication and distribution
- A memorandum summarizing PSC Meeting #1
- A memorandum summarizing up to eight (8) stakeholder interviews
- PowerPoint presentation for the Community Workshop #1
- A memorandum summarizing Community Workshop #1
- Draft and final project goals and success measures

MPO'S Responsibilities:

- Production and distribution of meeting announcements and advertising material
- Schedule, organize, and invite attendees to the PSC meeting #1
- Invite attendees to the study area tour
- Schedule, organize, and invite attendees to the stakeholder interviews
- Schedule and organize the evening community kick-off meeting
- Publish and distribute announcements for evening Community Workshop #1 meeting

TASK 3 – DATA COLLECTION, MAPPING, AND CONDITIONS/OPPORTUNITIES ASSESSMENT

The Kimley-Horn team will conduct a multi-phased existing conditions assessment to understand initiatives completed to date, and evaluate the previous recommendations against anticipated future development. The information gathered will be used to document the East Dell Range and US 30 corridors' mobility system's existing performance, that will be referenced in the development of the alternative mobility strategies and design solutions.

Task 3.1 – Existing Document Review

Kimley-Horn will review all existing plans, design guidelines, and standards from the City of Cheyenne that apply to this corridor; and compile into a single comprehensive summary.

Task 3.2 – Project Mapping with Infrastructure and Utility Update

Kimley-Horn will prepare a base map of the study area (in a format capable of being imported into the City's ArcGIS system) to document the contextual analysis and upon which all engineering decisions will

be made. A project high-resolution aerial scaled to 1' = 20' will be acquired for this project. Kimley-Horn will rely predominantly on available existing data and resources provided by the MPO and its project partners. The Kimley-Horn team, with field supplemental assembled data, will also identify:

- Driveway locations
- Signalized intersections
- Transit stops
- Drainage inlets (field edit)
- Stormwater system
- Sanitary sewer system
- Potable water system
- Overhead utility systems and crossings
- Other utilities

Task 3.3 – Wet and Dry Utility Evaluation

A utility assessment and upgrade analysis will be developed for the wet and dry utilities within the study area based on coordination plans with known utility providers (i.e., CenturyLink, Black Hills Power, Spectrum, and Cheyenne Board of Public Utilities) for expansion and rehabilitation of existing facilities. Additionally, storm water conveyance components and contributory basins of the corridor area will be reviewed. This utility assessment will document assumptions and known system upgrades, identify any significant issues, and recommend conceptual modifications that could impact future corridor improvements.

Task 3.4 – Land Use and Context Assessment and Sociodemographic Data Update

Kimley-Horn will assess the land use and socio-demographic changes that have occurred in the corridor since 2008. In this assessment, the Kimley-Horn team will update the population and employment assumptions from the 2008 travel demand model and use this information to update the traffic assumptions to test the previous 2008 recommendations.

Task 3.5 – Multimodal Transportation Demand Assessment

Kimley-Horn will evaluate the corridor, and its 2008 recommendations and mode-specific strategies. The assessment will identify corridor strengths, weaknesses, opportunities, and threats analysis (SWOT). Elements of the assessment will include:

- **Access Management and Safety Assessment** – Kimley-Horn's safety and access management assessment will review the physical conditions of the corridors (driveway paving, median openings, sidewalk locations, sight lines, etc.), and perform a corridor walking safety audit. The Kimley-Horn team will begin by reviewing three to five years of Cheyenne Police crash records, mapping the findings, and identifying any patterns that should be addressed within the corridor. In addition, the entire team will walk the corridors, and conduct visual inspections and safety audits. These audits enhance observations and allow the team to review a safety checklist. During these multidisciplinary walks the Kimley-Horn team will also foster discussions to help identify the best crash mitigation strategies.
- **Bicycling, Walkability, and Transit Facility (Americans with Disabilities Act [ADA])/Complete Street Assessment** – Kimley-Horn will conduct a complete street needs assessment for both East Dell Range and the US 30 corridors. In this assessment, the Kimley-Horn team will evaluate each mode of travel's needs and outline appropriate levels of accommodation within the

corridor. The stress levels of the walking and bicycle corridors will be evaluated, along with the accessibility of existing transit facilities on East Dell Range and US 30 associated with Cheyenne Transit's Ocean Loop/ Dell Range route and the Greenway/Lincoln Way route.

- **Traffic Operations and Warrant Assessment**– The Kimley-Horn team will prepare an existing traffic conditions and future forecast summary report. The summary report will describe the anticipated corridor operating conditions for the study area with the recommended improvements identified from the 2008 plan. Traffic volumes for the future-year traffic conditions will be based on the MPO information, as well as adjacent large development project traffic studies (such as Whitney Ranch.

The future traffic analysis will determine ultimate roadway and intersection needs for the corridor and study intersections for the long-term planning horizon. The analysis tool to be used for this project will be the Synchro traffic simulation software. Existing signal system timings will be used for the current conditions analysis, and optimized timings will be prepared and used for the future-year analysis. Both sets of timings are to be approved for use by the MPO prior to conducting any evaluations. The corridor Synchro (SimTraffic) analysis will include the intersections listed and will involve:

- anticipated travel times (delay study)
- vehicle level of service (LOS)
- identifying any operational deficiencies.

Using anticipated traffic values, Kimley-Horn will conduct signal warrant analyses for intersections to determine if signals are warranted in the future.

INTERSECTIONS TO BE EVALUATED

East Dell Range:

College Drive
Ocean Avenue
Ontario Avenue
Van Buren Avenue
El Camino Drive
Whitney Road
US 30

US 30:

College Drive
Pershing Boulevard / Cleveland Avenue
Ocean Avenue
Cady Avenue
Polk Avenue
Van Buren Avenue
Hayes Avenue
Alston Avenue
Whitney Road
Firewalker Trail
US 30

Task 3.6 – Corridor Strengths, Weaknesses, Opportunities, and Threats (SWOT) Analysis

Kimley-Horn will provide the MPO an integrated corridor SWOT assessment of the study area for the East Dell Range and US 30 corridors. This assessment will provide site analysis and context maps; an issues and opportunities assessment; and a PowerPoint presentation summarizing the data assembled along with information gathered from the stakeholder interviews, first community workshop, and the Multimodal Demand Assessment.

DELIVERABLES:

- Corridor Access Management and Safety Technical Memorandum
- Complete Street Needs Technical Memorandum

- Traffic Operations and Signal Warrant Technical Memorandum
- Corridor SWOT Technical Memorandum and PowerPoint

MPO'S RESPONSIBILITIES:

Provide a list and programs of current and recently approved developments in the corridor

Provide population, housing, and employment growth forecasts for Cheyenne and the metro area

Task 4 – Alternative Development and Refinement

Kimley-Horn will develop initial mode-specific strategies and potential solutions, building from the 2008 recommendations for the East Dell Range and US 30 corridors for the community, staff, and steering committee's consideration in the final set of recommendations. The goal is to integrate the multimodal projects, and deliver a package of strategies and actions into a single framework that aligns with community expectations, and is capable of being readily implementable within the City's existing resources and budgeting processes.

Task 4.1 – Initial Designs and Concept Alternatives

Kimley-Horn will develop an initial set of conceptual designs for community consideration. These designs will include an overall corridor plan, at 50-scale, along with four conceptual roadway cross sections (20-scale), and a conceptual intersection design at 20-scale.

Task 4.2 – Community Workshop #2

The second community design workshop will incorporate the results of: the stakeholder interviews, the first community workshop, and the multi-faceted technical analysis; and present initial design concepts of the corridors for community consideration. Feedback from this meeting will inform the Kimley-Horn team's final set of recommendations.

Task 4.3 – 35% Preliminary Design

Kimley-Horn will incorporate feedback from the second community meeting and develop a refined 35% preliminary design of the corridor for long-term improvements. The design will address needed traffic operational improvements, along with long-term solutions that will ensure the corridors accommodate all modes of travel. This 35% design will be the basis of all cost estimates established for the project.

Task 4.4 – Implementation Strategies

The implementation plan for the East Dell Range and US 30 corridors will develop planning-level cost estimates, for project recommendations based on constructability. Cost estimates will be determined using available local and regional data sources.

- **Cost Estimates** – The Kimley-Horn team will develop preliminary construction cost estimates for the identified improvements in the East Dell Range and US 30 corridors.
- **Prioritization and Programming** – The Kimley-Horn team will categorize projects into five and 10 horizon years to establish a clear picture of what can be implemented with City resources. The methodology used, project prioritization technique, and design and scheduling assumptions will be based on the community-supported project goals and measures of success. Projects will be presented so their purpose and need will be clearly communicated, providing a useful tool if funding situations change or new priorities are identified after this corridor plan is completed.

Task 4.5 – Project Steering Committee Meeting #2

Kimley-Horn will facilitate the PSC's review of the initial design concepts and technical support documents during an interactive workshop.

DELIVERABLES:

- Corridor Initial Concept Plan (50-scale)
- Four initial recommended cross sections (20-scale)
- Intersection concept plans (20-scale)
- 35% Preliminary Corridor Design Plans in CADD Format
- Meeting announcement and advertising material for MPO publication and distribution
- Preliminary design presentation for the Community Meeting #2
- Summary notes from the Community Meeting #2
- Summary notes from the PSC's Meeting #2

MPO'S RESPONSIBILITIES:

- Schedule, organize, and invite attendees to Community Meeting #2
- Schedule, organize, and invite attendees to the PSC's Meeting #2

Task 5 – Comprehensive Corridor Plan

A Comprehensive Corridor Plan, with mode-specific strategies and recommended infrastructure improvements, will be compiled into a coherent draft summary report. The project recommendations and implementation strategies will then be presented to the City of Cheyenne Planning Commission for final review and endorsement. A final illustrative report will then be packaged and provided to MPO staff.

Task 5.1 – Draft Corridor Plan and Report

A Comprehensive Corridor Plan will be:

1. Developed with a clear vision;
2. Easy to access via the City's website;
3. Easy to read/understand;
4. Of a reasonable page length;
5. Subdivided into meaningful sections;
6. Free of excess information (use appendices); and
7. Inclusive of graphical methods for presenting content.

Task 5.2 – Public Presentations and Public Hearings

Kimley-Horn will present the draft corridor plan and report to the City and County Planning Commissions; the Cheyenne MPO Policy, Technical, and Citizens Advisory Committees; one City Council meeting; and one County Commission meeting.

Task 5.3 – Final Corridor Plan and Report

Kimley-Horn will revise the draft Corridor Plan based on comments received during the final public presentation and public hearings to finalize the document.

DELIVERABLES:

- Draft corridor plan and report in electronic PDF file format
- Final report in electronic PDF file format and 10 bound hard copies
- Final project presentation (PowerPoint Format)

MPO'S RESPONSIBILITIES:

- Distribute the draft East Dell Range and US 30 Corridor Plan and Report to partner review agencies
- Facilitate timely review from each review partner
- Provide one consolidated set of review comments to the draft East Dell Range and US 30 Corridor Plan
- Schedule and provide staff report for the Cheyenne Planning Commission summarizing the East Dell Range and US 30 Corridor Master Plan

EXHIBIT B

*Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and Kimley-Horn
for Planning and Engineering Services in Support of the East Dell Range and US 30 Corridor Study*

EXHIBIT B

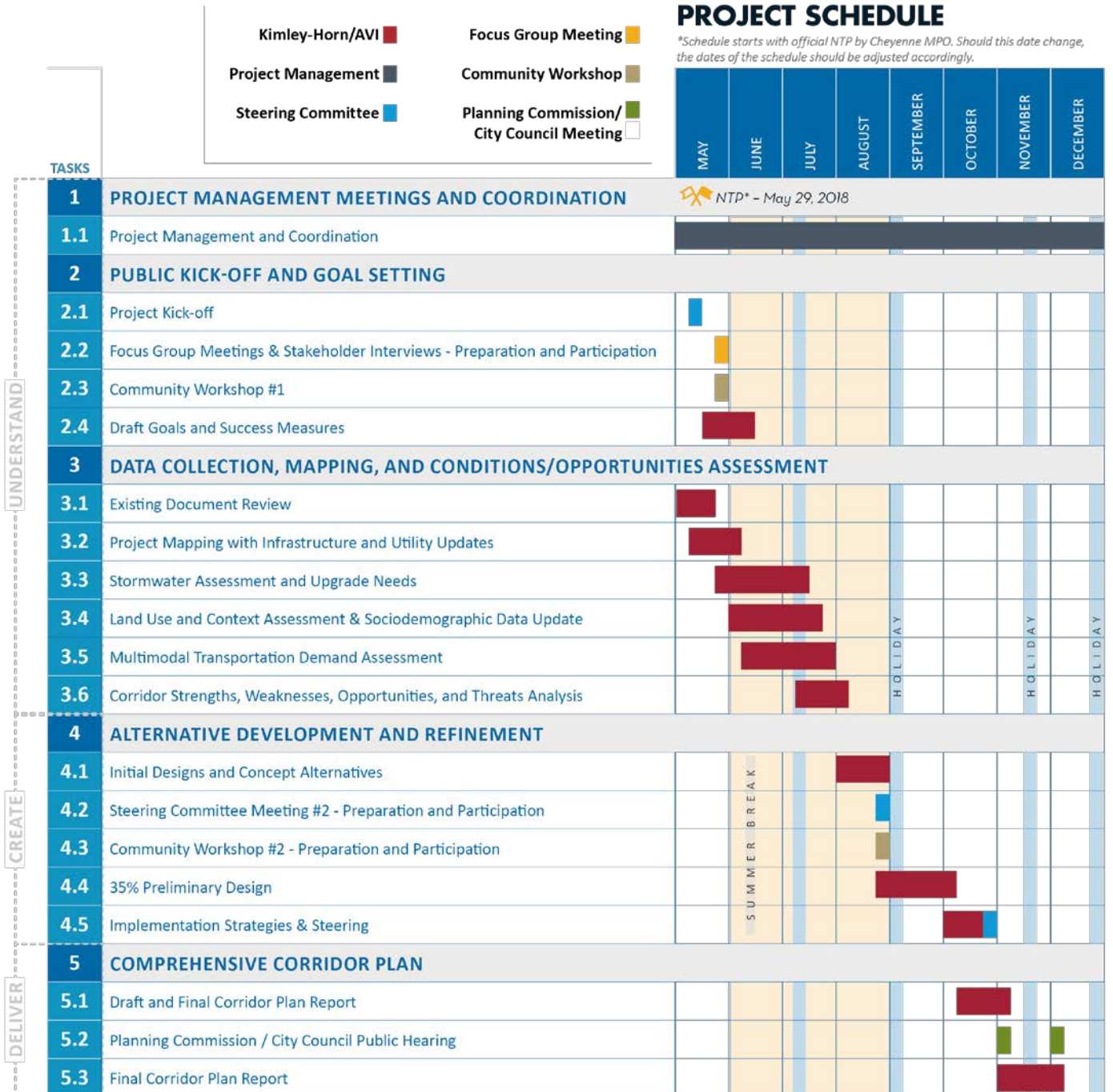


EXHIBIT C

*Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and Kimley-Horn
for Planning and Engineering Services in Support of the East Dell Range and US 30 Corridor Study*

EXHIBIT C

PROPOSED SCOPE AND FEE		TOTAL HOURS	TOTAL FEE
1	PROJECT MANAGEMENT MEETINGS AND COORDINATION		
1.1	Project Management and Coordination	32	\$5,200
2	PUBLIC KICK-OFF AND GOAL SETTING		
	Project Kick-off	26	\$3,322
2.1	- Steering Committee Meeting #1	18	\$2,348
	- Study Area Tour	8	\$974
2.2	Focus Group Meetings & Stakeholder Interviews - Preparation and Participation	37	\$4,724
2.3	Community Workshop #1	26	\$3,164
2.4	Draft Goals and Success Measures	18	\$2,000
3	DATA COLLECTION, MAPPING, AND CONDITIONS/OPPORTUNITIES ASSESSMENT		
3.1	Existing Document Review	10	\$1,041
3.2	Project Mapping with Infrastructure and Utility Updates	16	\$1,656
3.3	Stormwater Assessment and Upgrade Needs	28	\$2,864
3.4	Land Use and Context Assessment & Sociodemographic Data Update	17	\$2,280
	Multimodal Transportation Demand Assessment	171	\$23,220
3.5	- Access Management and Safety Assessment	52	\$6,240
	- Bicycling, Walkability, and Transit Facility (ADA) / Complete Street Assessment	46	\$6,220
	- Traffic Operations and Warrant Assessment	73	\$10,760
3.6	Corridor Strengths, Weaknesses, Opportunities, and Threats Analysis	41	\$4,760
4	ALTERNATIVE DEVELOPMENT AND REFINEMENT		
4.1	Initial Designs and Concept Alternatives	62	\$6,936
4.2	Steering Committee Meeting #2 - Preparation and Participation	20	\$2,574
4.3	Community Workshop #2 - Preparation and Participation	34	\$3,948
4.4	35% Preliminary Design	69	\$6,900
	Implementation Strategies & Steering	43	\$4,904
4.5	- Cost Estimates	17	\$1,856
	- Prioritization and Programming	26	\$3,048
5	COMPREHENSIVE CORRIDOR PLAN		
5.1	Draft and Final Corridor Plan Report	76	\$8,460
5.2	Planning Commission / City Council Public Hearing	38	\$5,820
5.3	Final Corridor Plan Report	7	\$822
Sub-Totals		771	\$94,595
Direct Expenses			\$2,550
Project Total			\$97,145